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Data (Use and Access) Act 2025

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Changes over time for: Section 81

05/02/2026

Changes to legislation:

There are currently no known outstanding effects for the Data (Use and Access) Act 2025, Section 81.

81

Data protection by design: children's higher protection matters

(1) Article 25 of the UK GDPR (data protection by design and by default) is amended as follows.

(2) After paragraph 1 insert—

“1A. In the case of processing carried out in the course of providing information society services which are likely to be accessed by children, when assessing what are appropriate technical and organisational measures in accordance with paragraph 1, the controller must take into account the children's higher protection matters.

1B. The children's higher protection matters are—

(a) how children can best be protected and supported when using the services, and

(b) the fact that children—

(i) merit specific protection with regard to their personal data because they may be less aware of the risks and consequences associated with processing of personal data and of their rights in relation to such processing, and

(ii) have different needs at different ages and at different stages of development.”

(3) In paragraph 3, for “1 and 2” substitute “1 to 2”.

(4) At the end insert—

“4. Paragraphs 1A and 1B are not to be read as implying anything about the matters that may be relevant to the assessment of what are appropriate technical and organisational measures for the purposes of paragraph 1 in cases other than those described in paragraph 1A.

5. In this Article, “information society services” does not include preventive or counselling services.”

Commencement Information

I1

S. 81 not in force at Royal Assent, see [s. 142\(1\)](#)

I2

[S. 81](#) in force at 5.2.2026 by [S.I. 2026/82](#), [reg. 2\(k\)](#)

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